Pfizer Inc. et al v. Alkem Laboratories Limited

Plaintiff:	Pfizer Inc. and PF PRISM IMB B.V.
Defendant:	Alkem Laboratories Limited
Case Number:	1:2026cv00623
Filed:	May 29, 2026
Court:	U.S. District Court for the District of Delaware
Presiding Judge:	Jennifer L Hall
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
July 10, 2026	**Filing 10** Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 8,791,140 B2. (Attachments: #1 Notice of Voluntary Dismissal)(ceg)
July 10, 2026	**Filing 9** NOTICE of Voluntary Dismissal by PF PRISM IMB B.V., Pfizer Inc. (Dellinger, Megan)
July 10, 2026	CASE CLOSED per D.I. #9 . (ceg)
July 6, 2026	**Filing 8** Unopposed MOTION for Extension of Time to Respond to the Complaint (D.I. 1) to September 21, 2026 - filed by PF PRISM IMB B.V., Pfizer Inc.. (Dellinger, Megan)
July 6, 2026	**Filing 7** WAIVER OF SERVICE returned executed by PF PRISM IMB B.V., Pfizer Inc.: For Alkem Laboratories Limited waiver sent on 6/23/2026, answer due 8/24/2026. (Dellinger, Megan)
July 6, 2026	SO ORDERED, re #8 Unopposed Motion for Extension of Time to Respond to the Complaint to September 21, 2026. (*Reset Answer Deadlines: Alkem Laboratories Limited answer due 9/21/2026). Ordered by Judge Jennifer L. Hall on 7/6/2026. (ceg)

Date Filed	Document Text
June 3, 2026	Case Assigned to Judge Jennifer L. Hall. Please include the initials of the Judge (JLH) after the case number on all documents filed. (alb)
June 1, 2026	**Filing 6** Summons Issued as to Alkem Laboratories Limited on 6/1/2026. (lah)
May 29, 2026	**Filing 5** Disclosure Statement pursuant to Rule 7.1: identifying Corporate Parent Pfizer Inc. for PF PRISM IMB B.V. filed by PF PRISM IMB B.V., Pfizer Inc.. (oam)
May 29, 2026	**Filing 4** Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 8,791,140 B2. (oam)
May 29, 2026	**Filing 3** Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 04/20/2026. Date of Expiration of Patent: 12/14/2030.Thirty Month Stay Deadline: 10/20/2028. (oam) Modified on 5/29/2026 (nms).
May 29, 2026	**Filing 2** Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (oam)
May 29, 2026	**Filing 1** COMPLAINT against Alkem Laboratories Limited (Filing fee $ 405, receipt number ADEDC-4980572) - filed by Pfizer Inc., PF PRISM IMB B.V.. (Attachments: #1 Exhibit A, #2 Civil Cover Sheet)(oam)
May 29, 2026	CORRECTING ENTRY: The summons issued at D.I. 6 has been removed from the docket as it was filed without the Court seal being applied. A corrected summons for service will be reissued. Further, D.I. #3 has been corrected to reflect the 30 -Month Stay deadline is 10/20/2028, not 10/30/2028. (nms)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Case Name: *Pfizer Inc. (Delaware) and PF PRISM IMB B.V. (Netherlands) v. Alkem Laboratories Limited (India)*
  - Plaintiff's Counsel: Morris, Nichols, Arsht & Tunnell LLP
- Case Identification: 1:26-cv-00623, D. Del., 05/29/2026
- Venue Allegations: Venue is asserted based on Defendant Alkem being a foreign corporation, which may be sued in any judicial district, and its subjection to personal jurisdiction in Delaware. The complaint also alleges that because Plaintiff Pfizer Inc. is a Delaware corporation, it suffers injury from Alkem's actions within the state.
- Core Dispute: Plaintiffs allege that Defendant's submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of the cancer drug Inlyta® (axitinib) constitutes an act of infringement of a patent covering specific crystalline forms of the drug's active ingredient.
- Technical Context: The lawsuit concerns specific crystalline structures (polymorphs) of an active pharmaceutical ingredient, a field critical to drug development for ensuring product stability, manufacturability, and consistent bioavailability.
- Key Procedural History: This action arises under the Hatch-Waxman Act, triggered by Alkem's submission of ANDA No. 221501 with a Paragraph IV certification. Alkem notified Pfizer of its filing via a letter dated April 17, 2026, asserting that its generic product would not infringe U.S. Patent No. 8,791,140 or that the patent is invalid. The complaint notes that the parties corresponded but failed to agree on terms for Pfizer to review Alkem's confidential ANDA information.

Case Timeline

Date	Event
2007-04-05	'140 Patent Priority Date
2012-01-27	FDA Approval for Inlyta®
2014-07-29	'140 Patent Issue Date
2026-04-17	Alkem's Notice Letter to Pfizer
2026-05-29	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,791,140 - "Crystalline Forms of 6-[2-(methylcarbamoyl)phenylsulfanyl]-3-E-[2-(pyridin-2-yl)ethenyl]indazole Suitable for the Treatment of Abnormal Cell Growth in Mammals" (Issued July 29, 2014)

The Invention Explained

- Problem Addressed: The patent's background explains that the same chemical compound can exist in different solid-state forms, known as polymorphs, each with unique physical properties (e.g., stability, solubility, flow characteristics) '140 Patent, col. 2:11-19 For pharmaceutical manufacturing, it is highly desirable to identify and consistently produce a specific, stable polymorph to ensure reliable formulation, safety, and efficacy '140 Patent, col. 2:31-39
- The Patented Solution: The invention identifies and characterizes several novel crystalline (polymorphic) and amorphous forms of the active pharmaceutical ingredient axitinib (referred to as "Compound 1") '140 Patent, abstract The patent uses analytical techniques, primarily powder X-ray diffraction (PXRD), to define these distinct forms by their unique structural fingerprints, such as specific peak locations in a diffraction pattern '140 Patent, col. 4:50-65 This allows for the selection and preparation of a specific form with advantageous properties for use in a pharmaceutical product.
- Technical Importance: Identifying and claiming a specific, stable crystalline form of a drug substance is a critical step in pharmaceutical development, as it helps ensure consistent product quality, shelf life, and bioavailability. '140 Patent, col. 2:39-49

Key Claims at a Glance

- The complaint asserts infringement of claims 1 through 6 of the '140 patent Compl. ¶34
- Independent claim 1, provided as an example in the complaint, contains the following essential elements Compl. ¶32:
    - [a] crystalline form of 6-[2-(methylcarbamoyl)phenylsulfanyl]-3-E-[2-(pyridin-2-yl)ethenyl] indazole,
    - wherein said crystalline form has a powder X-ray diffraction pattern comprising a peak at diffraction angle (20) of 6.0±0.1
    - and further comprising at least one peak at diffraction angle (20) selected from 11.5±0.1, 21.0±0.1 and 26.9±0.1.

III. The Accused Instrumentality

Product Identification

The accused instrumentality is "Alkem's ANDA Product," a generic version of axitinib tablets (1 mg and 5 mg) for which Alkem seeks FDA approval through Abbreviated New Drug Application No. 221501 Compl. ¶¶1-2 Under the Hatch-Waxman Act, the act of infringement is the submission of the ANDA itself for the purpose of marketing a drug claimed in a patent before its expiration Compl. ¶25

Functionality and Market Context

Alkem's ANDA Product is intended to be a generic equivalent to Pfizer's Inlyta®, a drug approved for the treatment of advanced renal cell carcinoma Compl. ¶17 By filing a Paragraph IV certification, Alkem is challenging the '140 patent's validity and/or applicability to its product, seeking to enter the market before the patent's expiration Compl. ¶21 The complaint alleges that Alkem intends to commercially manufacture, use, and sell its ANDA Product immediately upon receiving FDA approval Compl. ¶36

IV. Analysis of Infringement Allegations

The complaint's infringement theory is that Alkem's ANDA, filed to obtain approval for its generic axitinib product, is a technical act of infringement under 35 U.S.C. § 271(e)(2) Compl. ¶25 The core factual allegation, made on information and belief, is that the drug substance in Alkem's ANDA Product is the specific crystalline form of axitinib protected by the '140 patent Compl. ¶33 No probative visual evidence provided in complaint.

'140 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
[a] crystalline form of 6-[2-(methylcarbamoyl)phenylsulfanyl]-3-E-[2-(pyridin-2-yl)ethenyl] indazole	The complaint alleges, upon information and belief, that Alkem's ANDA Product contains a crystalline form of this specific chemical compound.	¶33	col. 2:20-30
wherein said crystalline form has a powder X-ray diffraction pattern comprising a peak at diffraction angle (20) of 6.0±0.1	The complaint alleges, upon information and belief, that the crystalline form in Alkem's ANDA Product exhibits this characteristic peak in its PXRD pattern.	¶33	col. 4:50-54
and further comprising at least one peak at diffraction angle (20) selected from 11.5±0.1, 21.0±0.1 and 26.9±0.1.	The complaint alleges, upon information and belief, that the crystalline form in Alkem's ANDA Product further exhibits at least one of these additional characteristic peaks in its PXRD pattern.	¶33	col. 4:50-61

Identified Points of Contention

- Factual Question: Since the allegations are made on "information and belief" prior to discovery, a central point of contention will be a factual one: what do the characterization data (e.g., PXRD) for Alkem's ANDA Product actually show? The case will likely hinge on whether the data from Alkem's product sample falls within the specific analytical parameters defined by the claims.
- Scope Question: The dispute may raise the question of how to interpret the numerical ranges in the claims. A key issue could be whether a peak measured at the margin of

the "±0.1" range (e.g., 6.11 degrees 2-theta) meets the claim limitation, a common point of dispute in polymorph litigation.

V. Key Claim Terms for Construction

- The Term: "crystalline form"
    - Context and Importance: This term is foundational to the patent, as the claims are directed to a specific solid-state form of a compound, not the compound itself. Its construction will determine the scope of what physical materials are covered by the claims.
    - Intrinsic Evidence for Interpretation:
        - Evidence for a Broader Interpretation: The patent provides a standard definition: "The term 'crystalline' refers to any solid substance exhibiting three-dimensional order" '140 Patent, col. 14:20-22 This supports a broad, conventional understanding of the term.
        - Evidence for a Narrower Interpretation: A defendant might argue that a product containing a mixture of polymorphs is not "a crystalline form" in the singular, but rather a composition of multiple forms. The patent itself distinguishes numerous distinct polymorphic forms, which could be used to argue that the claims to a single form require a high degree of polymorphic purity.
- The Term: "...a powder X-ray diffraction pattern comprising a peak at diffraction angle (2θ) of... ±0.1"
    - Context and Importance: Infringement will be determined by comparing Alkem's PXRD data to the numerical values in the claims. The interpretation of the "±0.1" range is therefore critical to determining whether a match exists.
    - Intrinsic Evidence for Interpretation:
        - Evidence for a Broader Interpretation: The specification explicitly acknowledges instrumental variability, stating that "one skilled in the art will appreciate that the peak positions (2θ) will show some variability, typically as much as 0.1 to 0.2 degrees" '140 Patent, col. 12:32-36 Plaintiffs may cite this language to argue the "±0.1" range should be interpreted to account for standard measurement tolerances.
        - Evidence for a Narrower Interpretation: A defendant could argue for a strict application of the "±0.1" range recited in the claim. The specification also discusses how experimental errors, such as sample height differences, can lead to much larger peak shifts, which a defendant might use to argue that without precise calibration and methodology, any data comparison is unreliable '140 Patent, col. 16:5-10

VI. Other Allegations

- Indirect Infringement: The complaint alleges that Alkem will actively induce infringement upon FDA approval by marketing and selling its product, thereby encouraging acts of direct infringement (e.g., use by patients and physicians) with knowledge of the '140 patent Compl. ¶¶38-39
- Willful Infringement: Willfulness is alleged based on Alkem's "full knowledge of the '140 patent," evidenced by its filing of a Paragraph IV certification specifically challenging the patent listed in the FDA's Orange Book Compl. ¶42 Compl. ¶21 The complaint further alleges Alkem acted "without a reasonable basis for believing that Alkem would not be liable for infringing" Compl. ¶42

VII. Analyst's Conclusion: Key Questions for the Case

1. A core question will be one of physical identity: once discovery is conducted, will the active pharmaceutical ingredient in Alkem's ANDA Product possess the specific crystalline structure defined by the powder X-ray diffraction peaks recited in the asserted claims of the '140 patent?
2. A second key issue will be one of patent validity: as signaled by its Paragraph IV certification, Alkem has asserted that the '140 patent is invalid Compl. ¶21 The case will therefore likely involve a defensive argument from Alkem that the claimed crystalline form was obvious, not novel, or inadequately described in the patent, shifting the focus from infringement to the patent's own strength.
3. A determinative subsidiary question will be one of definitional precision: how will the court construe the numerical claim limitation "±0.1" in the context of PXRD analysis? The outcome of this construction, informed by the patent's own statements on instrumental variability, could decide the infringement question if Alkem's product data lies at the edge of the claimed range.

IN THE UNITED STATES DISCTRICT COURT

FOR THE DISTRICT OF DELAWARE

PFIZER INC. AND PRISM IMB B.V.,	)	
	)	
Plaintiffs,	)	
	)	
v.	)	C.A. No._____
	)	
ALKEM LABORATORIES LIMITED,	)	
	)	
Defendants.	)	

COMPLAINT

Plaintiffs Pfizer Inc. and PF PRISM IMB B.V. (collectively "Pfizer"), file this Complaint for patent infringement against Alkem Laboratories Limited ("Defendant" or "Alkem"), and by their attorneys, hereby allege as follows:

NATURE OF THE ACTION

This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, that arises out of the submission of Abbreviated New Drug Application ("ANDA") No. 221501 submitted to the U.S. Food and Drug Administration ("FDA") in the name of Alkem seeking approval to manufacture and sell a generic version of Pfizer's Inlyta® (axitinib) tablets, 1 mg and 5 mg, ("Inlyta®") prior to the expiration of U.S. Patent No. 8,791,140 ("the '140 patent").

Alkem notified Pfizer by letter dated April 17, 2026 ("Alkem's Notice Letter") that it had submitted to the FDA ANDA No. 221501 ("Alkem's ANDA"), with a Paragraph IV certification, seeking approval from the FDA to engage in the commercial manufacture, use and/or sale of generic axitinib tablets, 1 mg and 5 mg ("Alkem's ANDA Product"), prior to the expiration of the '140 patent.

PARTIES

Plaintiff Pfizer Inc. is a corporation organized and existing under the laws of the State of Delaware and having a place of business at 66 Hudson Boulevard East, New York, NY 10001.

Plaintiff PF PRISM IMB B.V. is a private limited liability company (*besloten venootschap*) organized under the laws of the Netherlands, having its registered seat in Rotterdam, the Netherlands, and having its business address at Rivium Westlaan 142, 2909 LD, Capelle aan den IJssel, the Netherlands.

Upon information and belief, Alkem is a corporation organized and existing under the laws of India, having a principal place of business at Devashish Building, Alkem House, Senapati Bapat Road, Lower Parel, Mumbai, Maharashtra 400 013, India.

Upon information and belief, Alkem is a generic pharmaceutical company that develops, manufactures, markets, and distributes generic pharmaceutical products for sale in the State of Delaware and throughout the United States by itself and/or through its affiliates or agents.

Upon information and belief, and consistent with its practice with respect to other generic products, following any FDA approval of ANDA No. 221501, Alkem will distribute and sell the generic product described in ANDA No. 221501 throughout the United States and within Delaware.

JURISDICTION AND VENUE

This Court has subject matter jurisdiction under 28 U.S.C. §§ 1331 and 1338(a).

Alkem is subject to personal jurisdiction in Delaware because, among other things, Alkem has purposefully availed itself of the benefits and protections of Delaware's laws such that it should reasonably anticipate being haled into court here. Upon information and belief, Alkem develops, manufactures, imports, markets, offers to sell, and/or sells generic drugs throughout the United States, including in the State of Delaware and therefore transacts business within the State of Delaware, and/or has engaged in systematic and continuous business contacts within the State of Delaware.

Alkem has previously used the process contemplated by the Hatch-Waxman Act to challenge branded pharmaceutical companies' patents by filing a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), serving a notice letter on those companies, and engaging in patent litigation arising from the process contemplated by the Hatch-Waxman Act.

Upon information and belief, Alkem, with knowledge of the Hatch-Waxman Act process, directed Alkem's Notice Letter to, *inter alia*, Pfizer Inc., an entity incorporated in Delaware, and alleged in Alkem's Notice Letter that Alkem's ANDA Product will not infringe Pfizer's '140 patent and that the '140 patent is invalid. Upon information and belief, Alkem knowingly and deliberately challenged Pfizer's patent rights, and knew when it did so that it was triggering the forty-five day period for Pfizer to bring an action for patent infringement under the Hatch-Waxman Act.

Because Pfizer is incorporated in Delaware, Pfizer suffers injury and consequences from Alkem's filing of Alkem's ANDA, challenging Pfizer's patent rights, in Delaware. Upon information and belief, Alkem knew that it was deliberately challenging the patent rights of a Delaware entity and seeking to invalidate intellectual property held in Delaware. Alkem has been a litigant in connection with other infringement actions under the Hatch-Waxman Act, and reasonably should have anticipated that by sending Alkem's Notice Letter to Pfizer Inc., a Delaware corporation, that it would be sued in Delaware for patent infringement.

Upon information and belief, if Alkem's ANDA is approved, Alkem will directly or indirectly manufacture, market, sell, and/or distribute Alkem's ANDA Product within the United

States, including in Delaware, consistent with Alkem's practices for the marketing and distribution of other generic pharmaceutical products. Upon information and belief, Alkem regularly does business in Delaware, and its practices with other generic pharmaceutical products have involved placing those products into the stream of commerce for distribution throughout the United States, including in Delaware. Upon information and belief, Alkem's generic pharmaceutical products are used and/or consumed within and throughout the United States, including in Delaware. Upon information and belief, Alkem's ANDA Product will be prescribed by physicians practicing in Delaware, dispensed by pharmacies located within Delaware, and used by patients in Delaware. Each of these activities would have a substantial effect within Delaware and would constitute infringement of Pfizer's patents in the event that Alkem's ANDA Product is approved before the patents expire.

Upon information and belief, Alkem derives substantial revenue from generic pharmaceutical products that are used and/or consumed within Delaware, and which are manufactured by Alkem and/or for which Alkem is the named applicant on approved ANDAs. Upon information and belief, various products for which Alkem is the named applicant on approved ANDAs are available at retail pharmacies in Delaware.

Venue is proper in this judicial district pursuant to 28 U.S.C. § 1391 and § 1400(b) because, *inter alia*, Alkem is a corporation organized and existing under the laws of the Republic of India and is subject to personal jurisdiction in this judicial district. As a foreign corporation, Alkem may be sued in any judicial district pursuant to 28 U.S.C. § 1391(c)(3).

Alkem's infringing activities with respect to its filing of ANDA No. 221501 and its intent to commercialize and sell Alkem's ANDA Product prior to the expiration of the '140 patent have led and/or will lead to foreseeable harm and injury to Plaintiffs, including Pfizer Inc., which is incorporated in Delaware. In the alternative, this Court has personal jurisdiction over Alkem under Federal Rule of Civil Procedure 4(k)(2). Alkem has contacts with the United States by virtue, *inter alia*, of its filing ANDA No. 221501 with the FDA.

BACKGROUND

PF PRISM C.V., a subsidiary of Pfizer Inc., is the holder of approved NDA No. 202324 for the manufacture and sale of axitinib tablets, 1 mg and 5 mg, approved by the FDA for the treatment of advanced renal cell carcinoma after failure of one prior systemic therapy. Pfizer markets and sells axitinib tablets, 1 mg and 5 mg, under the trade name Inlyta®. Inlyta® was approved by the FDA on January 27, 2012.

The '140 patent, entitled "Crystalline Forms of 6-[2-(methylcarbamoyl)phenylsulfanyl]-3-E-[2-(pyridin-2-yl)ethenyl]indazole Suitable for the Treatment of Abnormal Cell Growth in Mammals" (Exhibit A hereto), and owned by Pfizer Inc., was duly and legally issued by the United States Patent and Trademark Office ("PTO") on July 29, 2014. The '140 patent is listed in the FDA's publication, *Approved Drug Products with Therapeutic Equivalence Evaluations* (commonly known as "the Orange Book") in connection with Inlyta®.

Pfizer has all right, title, and interest in the '140 patent, including the right to sue for infringement thereof.

Upon information and belief, Alkem filed or caused to be filed with the FDA ANDA No. 221501 under 21 U.S.C. § 355(j) to obtain approval for the commercial manufacture, use,

and sale of axitinib tablets, 1 mg and 5 mg (“Alkem’s ANDA Product”) in the United States before the expiration of the ’140 patent.

Upon information and belief, Alkem’s ANDA No. 221501 contains a certification pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) (“paragraph IV certification”), alleging that the claims of the ’140 patent are invalid, unenforceable and/or not infringed by Alkem’s ANDA Product.

Alkem sent or caused to be sent to Pfizer a letter dated April 17, 2026 (“Notice Letter”), notifying Pfizer that Alkem’s ANDA No. 221501 includes a paragraph IV certification to obtain approval to engage in the commercial manufacture, use, or sale of Alkem’s ANDA Product before the expiration of the ’140 patent and providing information pursuant to 21 U.S.C. § 355(j)(2)(B).

The purpose of Alkem’s submission of ANDA No. 221501 was to obtain approval under the FDA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem’s ANDA Product prior to the expiration of the ’140 patent.

Upon information and belief, Alkem’s ANDA Product is covered by one or more claims of the ’140 patent.

The submission of ANDA No. 221501 to the FDA constituted infringement by Alkem of the ’140 patent under 35 U.S.C. § 271(e)(2). Moreover, any commercial manufacture, use, sale, offer for sale, or importation of Alkem’s ANDA Product would infringe the ’140 patent under 35 U.S.C. § 271(a), (b) and/or (c).

In Alkem’s Notice Letter, Alkem included an Offer of Confidential Access to portions of ANDA No. 221501. The terms of Alkem’s Offer of Confidential Access were unreasonably restrictive.

In an exchange of correspondence, counsel for Pfizer and counsel for Alkem negotiated the terms of Alkem’s Offer of Confidential Access. The parties did not agree on terms under which Pfizer could review, among other things, Alkem’s unredacted ANDA, any Drug Master File referred to therein, or relevant characterization data. Alkem further refused to produce samples of Alkem’s ANDA Product.

An actual case or controversy exists between Pfizer and Alkem with respect to infringement of the ’140 patent.

This action is being commenced before the expiration of forty-five days from the date of the receipt of the Notice Letter.

COUNT I – INFRINGEMENT OF THE ’140 PATENT

Pfizer incorporates each of the preceding paragraphs as if fully set forth herein.

Upon information and belief, Alkem’s ANDA Product infringes one or more claims of the ’140 patent either literally or under the doctrine of equivalents.

As an example, claim 1 of the ’140 patent recites a compound comprising: “[a] crystalline form of 6-[2-(methylcarbamoyl)phenylsulfanyl]-3-E-[2-(pyridin-2-yl)ethenyl]indazole, wherein said crystalline form has a powder X-ray diffraction pattern comprising a peak at diffraction angle (2θ) of 6.0$\pm$0.1 and further comprising at least one peak at

diffraction angle (2θ) selected from 11.5$\pm$0.1, 21.0$\pm$0.1 and 26.9$ \pm$0.1."

Upon information and belief, Alkem's ANDA Product contains "[a] crystalline form of 6-[2-(methylcarbamoyl)phenylsulfanyl]-3-E-[2-(pyridin-2-yl)ethenyl]indazole, wherein said crystalline form has a powder X-ray diffraction pattern comprising a peak at diffraction angle (2θ) of 6.0$\pm$0.1 and further comprising at least one peak at diffraction angle (2θ) selected from 11.5$\pm$0.1, 21.0$\pm$0.1 and 26.9$\pm$0.1."

Upon information and belief, Alkem's ANDA Product infringes claims 1–6 of the '140 patent literally or under the doctrine of equivalents.

Alkem's submission of ANDA No. 221501 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alkem's ANDA Product prior to the expiration of the '140 patent infringes the '140 patent under 35 U.S.C. § 271(e)(2)(A).

Upon information and belief, Alkem will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alkem's ANDA Product immediately and imminently upon approval of ANDA No. 221501.

Upon information and belief, the manufacture, use, offer for sale, marketing, distribution, and/or importation of Alkem's ANDA Product would infringe, literally and/or under the doctrine of equivalents, one or more claims of the '140 patent under 35 U.S.C. § 271.

Upon information and belief, Alkem plans and intends to, and will, actively induce infringement of the '140 patent when ANDA No. 221501 is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Alkem's activities will be done with knowledge of the '140 patent and specific intent to infringe the '140 patent.

Upon FDA approval of ANDA No. 221501, Alkem will intentionally encourage acts of direct infringement of one of more claims of the '140 patent by others, with knowledge that their acts are encouraging infringement.

Upon information and belief, Alkem knows that Alkem's ANDA Product is especially made or adapted for use in infringing the '140 patent, that Alkem's ANDA Product is not a staple article or commodity of commerce, and that Alkem's ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, Alkem plans and intends to, and will, contribute to infringement of the '140 patent immediately and imminently upon approval of Alkem's ANDA.

The foregoing actions by Alkem constitute and/or will constitute infringement of the '140 patent, active inducement of infringement of the '140 patent, and/or contribution to the infringement by others of the '140 patent.

Upon information and belief, Alkem has acted with full knowledge of the '140 patent and without a reasonable basis for believing that Alkem would not be liable for infringing the '140 patent, actively inducing infringement of the '140 patent, and/or contributing to the infringement by others of the '140 patent.

Unless Alkem is enjoined from infringing the ’140 patent, actively inducing infringement of the ’140 patent, and/or contributing to the infringement by others of the ’140 patent, Pfizer will suffer irreparable injury. Pfizer has no adequate remedy at law.

Alkem’s submission of ANDA No. 221501 with knowledge of the ’140 patent and its infringement of that patent makes this case exceptional.

COUNT II – DECLARATORY JUDGMENT OF INFRINGEMENT OF THE ’140 PATENT

Pfizer incorporates each of the preceding paragraphs as if fully set forth herein.

The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Pfizer on the one hand and Alkem on the other regarding Alkem’s infringement, active inducement of infringement, contribution to the infringement by others of the ’140 patent, and/or the validity of the ’140 patent.

The Court should declare that the commercial manufacture, use, sale, offer for sale and/or importation of Alkem’s ANDA Product or any other Alkem drug product that is covered by or whose use is covered by the ’140 patent, will infringe, induce infringement of, and contribute to the infringement by others of the ’140 patent.

PRAYER FOR RELIEF

WHEREFORE, Pfizer requests the following relief:

(a) A judgment that Alkem has infringed the ’140 patent;

(b) A judgment ordering that the effective date of any FDA approval for Alkem to make, use, offer for sale, sell, market, distribute, or import Alkem’s ANDA Product, or any product or compound the making, using, offering for sale, sale, marketing, distributing, or importation of which infringes the ’140 patent be not earlier than the expiration date of the ’140 patent, inclusive of any extension(s) and additional period(s) of exclusivity;

(c) A preliminary and permanent injunction enjoining Alkem, its officers, agents, servants, employees and attorneys, and all persons acting in concert with them, from making, using, selling, offering for sale, marketing, distributing, or importing Alkem’s ANDA Product, or any product or compound the making, using, offering for sale, sale, marketing, distributing, or importation of which infringes the ’140 patent, or the inducement of or the contribution to any of the foregoing, prior to the expiration date of the ’140 patent, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A judgment declaring that making, using, selling, offering for sale, marketing, distributing, or importing Alkem’s ANDA Product, or any product or compound the making, using, offering for sale, sale, marketing, distributing, or importation of which infringes the ’140 patent prior to the expiration date of the ’140 patent, will infringe, actively induce infringement of, and/or contribute to the infringement by others of the ’140 patent;

(e) A declaration that this is an exceptional case and an award of attorneys’ fees pursuant to 35 U.S.C. §§ 285;

(f) An award of Pfizer’s costs and expenses in this action; and

(g) Such further and other relief as this Court may deem just and proper.

MORRIS, NICHOLS, ARSHT & TUNNELL LLP

/s/ Megan E. Dellinger

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